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Case Name: *Turiello v. Piping Systems Engineering Inc.*
Case No.: 25CV464775

Before the Court are three motions to seal filed pursuant to California Rules of Court, rules 2.550 and 2.551: (1) Plaintiffs’ Motion to File Joint Case Management Conference Statement Under Seal (filed April 24, 2026); (2) Plaintiffs’ Motion to File Opposition to Proposed Intervenor’s Motion to Intervene Under Seal (filed March 3, 2026); and (3) Proposed Intervenor Central Sprinkler LLC and Johnson Controls, Inc.’s Motion to File Reply Memorandum in Further Support of Motion to Intervene Under Seal (filed May 21, 2026). The motions are unopposed. As discussed below, the Court GRANTS the motions to seal.

I. Background

This action arises from alleged defects in a Firefighter Air Replenishment System (FARS) developed by Rescue Air Systems, Inc. (“Rescue Air”), a company founded by plaintiff Anthony Turiello in 1993. Rescue Air contracted with defendants Piping Systems Engineering, Inc. and Hydraulics International, Inc. for work relating to FARS. In October 2022, Plaintiffs sold Rescue Air to intervenors Johnson Controls, Inc. and Central Sprinkler LLC (collectively, “JCI”) pursuant to a Purchase Agreement containing confidentiality provisions. Following the acquisition, JCI discovered alleged defects in FARS and withheld earn-out payments from plaintiffs, claiming indemnification rights. Plaintiffs filed this action in April 2025. The Court granted JCI’s motion to intervene in May 2026.

This Court has addressed multiple sealing motions in this action. On December 2, 2025, the Court denied Plaintiffs’ first motion to seal a joint case management statement, finding the requirements of California Rules of Court, rule 2.550(d) were not satisfied and that the motion was not supported by facts establishing an overriding interest, substantial probability of prejudice, narrow tailoring, or absence of less restrictive means. On February 25, 2026, the Court continued Plaintiffs’ motion to seal their opposition to the ex parte application, finding that while Plaintiffs had adequately explained an overriding interest, they had not sufficiently shown substantial probability of prejudice or that no less restrictive means existed.

On May 6, 2026, the Court granted motions to seal filed by both Plaintiffs and JCI relating to the motion to intervene and joint case management statements. The Court found an overriding interest based on the parties' binding contractual agreement not to disclose and because the information involves confidential matters pertaining to business operations. The Court further found substantial probability that these overriding interests would be prejudiced and that the other factors set forth in rule 2.550 were satisfied. On May 20, 2026, the Court granted Plaintiffs' motion to seal their opposition to the ex parte application, applying the same analysis and finding the factors satisfied.

II. Legal Standard

"The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exists to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d).) Pleadings, in particular, should be open to public inspection "as a general rule," although they may be filed under seal in appropriate circumstances. (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 104, fn. 35.)

"Courts have found that, under appropriate circumstances, various statutory privileges, trade secrets, and privacy interests, when properly asserted and not waived, may constitute overriding interests." (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn. 3 (*Providian*).) "[A] binding contractual agreement not to disclose" may suffice. (*Huffy Corp. v. Superior Court* (2003) 112 Cal.App.4th 97, 107.) In addition, confidential matters relating to the business operations of a party may be sealed where public revelation of the information would interfere with the party's ability to effectively compete in the marketplace. (See *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1285-1286.)

III. Motions to Seal

Plaintiffs' counsel has filed declarations in support of Plaintiffs' instant motions to seal. (See Declaration of Nicole L. Chessari in Support of Plaintiffs' Motion to File Joint Case Management Conference Statement Under Seal (filed April 24, 2026) and Declaration of Nicole L. Chessari in Support of Plaintiffs' Motion to File Opposition to Proposed Intervenor's Motion to Intervene Under Seal (filed March 3, 2026).) JCI's counsel has also filed a declaration in support of their instant motion to seal. (See Declaration of Rachel E. Mueller in Support of Proposed Intervenor's Central Sprinkler LLC and Johnson Controls, Inc.'s Motion to File Reply Memorandum in Further Support of Motion to Intervene Under Seal (filed May 21, 2026).)

Having reviewed the three instant motions to seal as well as the supporting memoranda and declarations submitted by counsel relating to these three motions to seal, the Court finds that there is an overriding interest in sealing the materials in question because the parties are under a binding contractual agreement not to disclose this information and because the information involves confidential matters pertaining to business operations. The Court further finds that there is substantial probability that these overriding interests would be prejudiced and that the other factors set forth in rule 2.550 are satisfied.

Accordingly, the Court GRANTS the motions to seal.

IV. Conclusion

The Court GRANTS: Plaintiffs' Motion to File Joint Case Management Statement Under Seal; Plaintiffs' Motion to File Opposition to Proposed Intervenor's Motion to Intervene Under Seal; and Proposed Intervenor Central Sprinkler LLC and Johnson Controls, Inc.'s Motion to File Reply Memorandum in Further Support of Motion to Intervene Under Seal.

Plaintiffs shall prepare the order.

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